

Consumer. Education And Research ... vs Union Of India &. Ors on 16 February, 2000

Equivalent citations: AIR 2000 SUPREME COURT 975, 2000 (2) SCC 599, 2000 AIR SCW 633, (2000) 2 JT 189 (SC), 2000 (3) SRJ 275, 2000 (1) SCALE 606, 2000 (2) JT 189, 2000 (2) UJ (SC) 843, 2000 (5) COM LJ 268 SC, 2000 (1) LRI 634, (2000) 1 MAHLR 823, (2000) 1 SCALE 606, (2001) 2 GUJ LR 1091, (2000) 2 PAT LJR 21, (2000) 2 SUPREME 238, (2000) WLC(SC)CVL 150

Bench: G.T.Nanavati, S.N.Phukan

PETITIONER:

CONSUMER. EDUCATION AND RESEARCH SOCIETY .

Vs.

RESPONDENT:

UNION OF INDIA &. ORS.

DATE OF JUDGMENT: 16/02/2000

BENCH:

G.T.Nanavati, S.N.Phukan

JUDGMENT:

DER G.T. NANAVATI In this special leave petition the judgment and order passed by the High Court in Spedal Civil Application No.6707 or 1995 is challenged. The petitioner had filedi the writ petition chllenging the government notification dated 9.8.1995 and the resolution dated 27.7.1995 passed by the State Legislature reducing the area of "Narayan Sarovar ChinKara Sanctuary" from 765.79 Sq. K.M. to 444.2.3 Sq. K.M. The High Court dismissea that petition.

On 14.4.1981 the Government of Gujarat in exercise of the powers conferred by Section 18(1) of the Wild Life Protection Act, 1972, declared a part of the forest area in Lakhphat Taluka of Kutch. District as a "Wild life Sanctuary". The total area of the sanctuary was 765.79 Sq. K.M. On 27.7.1993 it cancelled that notification and issued another whereby only a part of the said reserved forest:

was deciared as the "Chinkara Wild Life Sanctuary', The area so declared was 94.87 Sq.K.M. The said two notifications were chalirnged by the petitioner by filing writ petition? in the Gujarat High court The High Court quashed both those notifications The result was. that the earlier notification dated 14.4.1981 was revived. Thereafter the State Government made certain inquires and decided to delimit the area of that

sanctuary as it was found to be more than required and the delimitation was likely to be helpful in systematically developing that area economically by making use of its mineral wealth. It then moved the State Legislature for passing an appropriate resolution in that behalf. The State Legislature, thereafter on 27.7.1995, passed a resolution to reduce the sanctuary limit to 444.23 Sq.K.M. and make the area of 321,56 Sq.K.M. rich with minerals like limestone, lignite, bauxite, and bentonite. available for the development of the said backward area of Kutchh District. The resolution was passed in exercise of the powers conferred by Section 26A(3) of the Wild Life Protection Act. Pursue to that resolution the Government issued a notification Lo that effect en 9.8.1995. The petitioner again chalienged those notification by filing the writ a petition.

The High Court, after scrutinising the resolution was of the view that "the State Legislature was quite aware about the wild life as without in any way diluting the commitment to protect wild Life and to Improve the -habitat. positive steps are taken so neither wiidUfe is affected nor the improvement is affected." The High Court heid that for about 12QO Chinkaras the area of 444.23 Sq.K.M. was quite surfidsnt. It further has that econom'c development of the araa was likely to banefit the people of Kutchh District at large and help in protection, preservation and development of flora and fauna of that area. As regards permission to set up the cement pisnt near that arsa and to do mining In the de-notified area. it heid that proper conditions have been imposed for preventing pollution and to meet other environmental requirements. Taking this vs^v it dismissed the writ petition.

Initially an attempt was made to se«e if st was possible to pass an agreed order. But that attempt did not succeed. On 8.5.1997 the following inter^n order was passed: